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PRESENTENCE REPORT COUNTERFACTUAL BRANCH — NEVER
FILED OR ENTERED ON THE ACTUAL DOCKET — ISOLATED
FICTIONAL DOCKET SYN-CA4-26-CR-4201-CF-DAY15-NEVER-FILED**

Never-Filed Government Reply on Rule 4(b) and Waiver

Never-filed date: April 2, 2026 **Isolated synthetic docket:** SYN-CA4-26-CR-4201-CF-DAY15-NEVER-FILED **Never-filed document number:** 8

The government replies that its March 25 motion was both first and prompt. Before the March 23 certified return, the isolated appeal was held in abeyance so the district court could decide whether Rule 4(b)(4) relief would make the day-15 notice effective. No government disposition response was due or filed during that court-directed process.

Two days after return, the first substantive government paper invoked Rule 4(b) and the appeal waiver together. That combined presentation complied with Local Rule 27(f)(2) and *United States v. Kemp*, 88 F.4th 539 (4th Cir. 2023), by stating every apparent threshold ground rather than saving one for later.

Serrano identifies no earlier government brief, merits participation, or disposition request. Administrative knowledge of a possible deadline problem is not a prior response that forfeits an objection. Under *Brantley*, the prompt invocation now requires dismissal of the isolated appeal.

No Timely Date or Substance-Based Exception

The returned findings foreclose a timely-date theory. Direct clerk receipt occurred March 12; Rule 4(c) did not apply; no Rule 4(b)(3) motion tolled time; and the clerk remained accessible on March 11. The district court found neither excusable neglect nor good cause and affirmatively declined an extension.

Serrano correctly states that the appellate court cannot reopen that completed determination through a new request. His remaining reliance on the importance or reserved status of allocution cannot excuse the delay. Brantley applies Rule 4(b) without regard to the substantive error asserted once the government invokes the rule promptly.

Marsh likewise rejects equitable avoidance of the mandatory process. The government does not ask the panel to dismiss sua sponte, treat the deadline as jurisdictional, or disregard Rule 4(b)(4). It asks the court to enforce the claim-processing rule on a closed extension record.

The appropriate result is dismissal without reviewing the sentencing transcript, weighing prejudice from allocution, or deciding whether the role enhancement was correct.

Alternative Waiver Ground and Conclusion

The government maintains its alternative waiver request only to preserve it. The Rule 11 record shows a knowing agreement and no government breach. Its broad sentencing terms reach the § 3B1.1(b) calculation dispute, while its express exception leaves complete denial of allocution outside the waiver.

If timing dismissal were denied, Boutcher would support enforcing the waiver against the enhancement target without deciding person-management facts. The reserved allocution issue would remain. Because Rule 4(b) disposes of the whole branch appeal, the panel need not undertake that divided analysis.

The court should dismiss solely under Rule 4(b), state that the government invoked the rule in its March 25 first disposition filing, and decline to reach the waiver or either sentencing issue. That is narrower than an advisory alternative holding and follows the returned timing facts.

Bram Ives signs this never-filed reply on April 2, 2026, and certifies fictional service on Celia Arden. It contains no genuine contact information, account, credential, sealed report, or actionable offense detail. The reply exists only on the isolated docket and changes no actual-case record.